

NON-DISCLOSURE AGREEMENT

This "Agreement" is made and entered into as of the last date of execution hereof by and between:

M/s.....(Name of the vendor), a Company registered under the Companies Act 2013, having its Registered Office at (Vendor's Registered Office Address), hereinafter referred to as "M/S....." (Name of the vendor)

AND

Hindustan Aeronautics Limited, an Indian Company registered under the Companies Act, 1956, having its Registered Office at 15/1 Cubbon Road, Bangalore 560001, India, through its Aircraft Manufacturing Division having office at Ojhar, Tal : Niphad, Nashik hereinafter referred to as "HAL" "M/S....."(Name of the vendor) and HAL shall hereinafter be individually referred to as "Party" or collectively as the "Parties", as the context demands.

THE PARTIES AGREE AS FOLLOWS:

1. DEFINITIONS

1.1. **"Agreement"** means this Non-Disclosure Agreement.

1.2. **"Confidential Information"** means information which is not in the public domain, is proprietary to HAL and/or "M/S....." (Name of the vendor) and includes, but is not limited to, the following.

- a) Scientific or technical information, know-how, inventions, designs, drawings, diagrams, schematics, processes, procedures, formulae, technologies or methods;
- b) Reports, data, logos, trademarks, specifications, computer software, source codes, object codes, flow charts, databases, and trade secrets;
- c) Commercial information including prices and terms & conditions of Orders/Contracts entered into between the Parties;
- d) Copies of the documents and information described in a), b) and c) above.

1.3. **"Disclosing Party"** abbreviated as **"DP"** shall mean the Party that discloses the Confidential Information.

1.4. **"Purpose"** shall be as described in Article 2.1 infra in relation to the outsourced or insourced scope of work.

1.5. **"Receiving Party"** abbreviated as **"RP"** shall mean the Party that receives the Confidential Information.

2. PURPOSE

2.1. The purpose of this Agreement is to set forth the rights and obligations of the Parties with respect to the use, handling and protection of Confidential Information which is disclosed by and between the Parties for the purpose of execution by "M/S....."(Name of the vendor)of the following work outsourced by HAL (hereinafter referred to as the "Purpose").

As per scope of work of Enquiry no:.....

2.2. For furthering the purpose as above, the Parties may disclose Confidential Information to each other which the Parties shall handle in strict compliance to the provisions of this Agreement.

3. PROCEDURE FOR DISCLOSURE

3.1. When disclosed in writing or through electronic means to the RP, Confidential Information will be clearly stamped or marked by the DP as such. Such stamping or marking may include terms such as "Restricted", "Confidential", "Commercially Confidential", "Proprietary", "Secret" or "Top Secret".

3.2. When disclosed orally, Confidential Information will be identified as such at the time of disclosure by the DP and later reduced to writing or electronic form within 15 calendar days and sent to the RP. However, inadvertent failure of the DP to reduce to writing as above and communicate to the RP shall not discharge the RP from its obligations under this Agreement.

3.3. In the event that the DP fails to identify information disclosed to the RP as Confidential Information, the DP may correct such lapse by notifying the RP in writing as soon as possible. The RP shall not be in breach of this Agreement if such information is used or shared with any third party, without regard to the terms of this Agreement, prior to the receipt of such notification from the DP.

4. OBLIGATIONS OF THE RECEIVING PARTY

The RP shall have the following obligations with respect to Confidential Information:

4.1. To prevent disclosure of Confidential Information to any third party other than its own employees or sub-contractor. Sharing information with its employees or sub-contractor shall also be strictly on a need-to-know basis and solely for the Purpose. Further, a similar Non-Disclosure Agreement is required to be entered with the sub-contractor.

4.2. To store and protect the Confidential Information with utmost care.

4.3. Not to remove any stampings or markings appearing on Confidential Information.

4.4. Not to use Confidential Information for any reason other than the Purpose unless specifically authorised in writing by the DP.

5. EXCEPTIONS TO OBLIGATIONS OF THE RECEIVING PARTY

The obligations with respect to handling of Confidential Information set forth in this Agreement are not applicable to any information which:

- 5.1. prior to its disclosure by the DP was already known to the RP provided that immediately upon the disclosure by the DP, the RP will bring such fact to the attention of the DP in writing; or
- 5.2. is at the time of disclosure in the public domain or which comes into public domain later, where the publication of such information is not through a breach of this Agreement; or
- 5.3. is legally received from a third party, but the RP has no reasonable cause to believe that the third party has obtained such information through a breach of contract between such third party and the DP; or
- 5.4. is independently developed by the RP or a third party, without any breach of contract wherein the DP is a party; or
- 5.5. is approved for release or use by written authorization of the DP; or
- 5.6. is required to be disclosed by law or is mandated to be disclosed by an order by a Court of law or other governmental authority having jurisdiction.

Subject to the following Provisos.

- a) Even if a part of the Confidential Information is exempted under any one of the above exceptions, the RP's obligations as to the remainder of the Confidential Information shall remain in force.
- b) The burden of proof that one or more of the exceptions set forth above will apply to a specific case of disclosure shall rest on the RP.

6. TERM AND TERMINATION

- 6.1. This Agreement shall come into effect from the date of signature by both the Parties and shall remain in force for a minimum period of five years or the date of termination, whichever is earlier. The term of this Agreement can be extended by mutual agreement through a signed amendment in writing.
- 6.2. This Agreement can be terminated by either Party giving at least 30 days' notice in writing to the other Party.
- 6.3. Expiry or termination of this Agreement shall not ipso facto relieve the RP of its obligations under this Agreement which shall be in force for a further period of five years from such date of expiry or termination unless the DP formally discharges the RP from its obligations in writing.

7. RETURN OR DESTRUCTION OF CONFIDENTIAL INFORMATION

- 7.1. Unless there is an agreement to the contrary, the RP shall return all Confidential Information (and all copies thereof) within thirty (30) days of the completion of the period as per Para 6.3 above. Soft copies stored electronically by the RP shall also be permanently erased by the RP within such time limit.
- 7.2. If the DP is not satisfied by the actions as above, it shall demand further evidence or actions from the RP within 30 days. If no such demand is raised by the DP in writing within this time limit, the RP shall be automatically discharged from all of its obligations under this Agreement.

8. CONTACT PERSONS

All communications related to this Agreement and exchange of information shall be handled by the following officials.

HINDUSTAN AERONAUTICS LIMITED	M/S.....(Vendor Name)
Name: Designation: Address: Contact No.: E-mail:	Name: Designation: Address: Contact No.: E-mail:

As regards the employees identified above, each Party shall have the right and power and authorization to re-designate such employees within their organization, who will have authorization to receive and /or transmit Confidential Information exchanged by the Parties under this Agreement. Any such re-designation which is made by any of the Parties shall be effected by rendering written notice of such change to the other Party.

9. REMEDIES

In the event of breach of obligations under this Agreement by the RP, the DP shall be entitled to injunctive relief for rectification of the consequences of the breach as well as for preventing further dissemination of Confidential Information in violation of the terms hereof. Such relief shall be in addition to other legal remedies available to the DP to recoup the losses caused by the breach or to compensate for loss of reputation.

10. DISPUTE RESOLUTION

If Vendor is a Private Company, Proprietorship, LLP, etc.:

All disputes arising out of this Agreement at the first instance shall be resolved by mutual discussions. Disputes which cannot be so resolved shall be settled by arbitration in accordance with the Rules of Domestic Commercial Arbitration of Indian Council of Arbitration, by a single arbitrator appointed in accordance

with the said Rules. The seat of arbitration shall be Nashik, Maharashtra in India. The proceedings shall be conducted in English Language.

The arbitration award shall be final and binding on the Parties. During pendency of the arbitration proceedings, the Parties shall continue to perform their obligations under this Agreement.

If Vendor is a PSU or a Government entity:

In the event of any dispute relating to this Agreement, Parties agree to schedule a mandatory meeting at a mutually agreed location and attended by the representatives designated by the Parties to resolve the dispute. Any dispute that is not resolved within thirty days from the date of the meeting as above shall be taken up by either Party for resolution through AMRCD as mentioned in DPE OM No. 05/0003/2019-FTS-10937 dated 14-12-2022 and the decision of AMRCD on the said dispute shall be binding on the Parties.

11. AMENDMENT

Any amendment to this Agreement must be made in writing and shall be signed on behalf of the Parties.

12. NOTICE OF BREACH

RP shall notify the DP immediately upon discovery of any unauthorized use or disclosure of Confidential Information by RP or its representatives, or any other breach of this Agreement by RP or its representatives, and will cooperate with efforts by the DP to help the DP regain possession of Confidential Information and prevent its further unauthorized use.

13. SEVERABILITY

The invalidity or unenforceability of any provisions of this Agreement shall not affect the validity or enforceability of any other provision of this Agreement and other provisions shall remain in full force and effect.

14. WAIVER

The failure of either Party, at any time, to require performance and/or enforcement of any provision of this Agreement by the other Party shall not be construed as a waiver of its rights under this Agreement, nor shall it affect its rights at some later date to enforce its rights under this Agreement.

15. SUCCESSORS

Subject to Article 15 ("Assignment"), this Agreement shall be binding upon and inure to the benefit of the respective successors and permitted assignees of both the Parties.

16. INTELLECTUAL PROPERTY RIGHTS

16.1 No rights, except as provided herein, are granted to the RP by virtue of disclosure of Confidential Information by DP. Such rights shall remain with the DP or concerned third parties, as the case may be.

16.2 No license or conveyance of any rights to either Party under any discoveries, inventions, patents, trade secrets, copyrights, or other form of intellectual property is expressly granted or implied by the disclosure or exchange of Confidential Information between the Parties.

17. CLASSIFIED INFORMATION

Nothing herein shall be deemed to replace or prejudice any governmental security classification referenced on any part of the Confidential Information and the RP undertakes to respect and observe any such classification and to treat the same with such degree of care and security as is required by the relevant governmental authority in the country of the DP. This obligation shall continue for the duration of this Agreement and thereafter until such time as the said authority shall deem appropriate.

18. GENERAL

As to any matter which is not expressly covered herein, the terms and conditions of the Order/Contract for outsourcing or insourcing to which this Agreement relates shall apply.

IN WITNESS WHEREOF, the Parties by their duly authorized representatives have signed this Agreement in two (2) originals, one for each Party.

HINDUSTAN AERONAUTICS LIMITED	M/s.....(Name of vendor)
Signature: Name: Title: Date:	Signature: Name: Title: Date:

Witnesses: (Name & Sign)

1.....

2.....

Witnesses: (Name & Sign)

1.....

2.....

OMNIBUS NON-DISCLOSURE AGREEMENT

This "Agreement" is made and entered into as of the last date of execution hereof by and between:

.....(Name of the vendor), a
Company registered under the Companies Act 2013, having
its Registered Office at(Registered
Office Address), hereinafter referred to as

"....." AND Hindustan Aeronautics
Limited, an Indian Company registered under the
Companies Act, 1956, having its Registered Office at 15/1 Cubbon Road, Bangalore
560001, India, hereinafter referred to as "HAL".

"....." and HAL shall
hereinafter be individually referred to as "Party" or
collectively as the "Parties", as the context demands.

WHEAREAS various Divisions and R&D Centres of HAL may outsource work to
"....."
(under various Orders placed or Contracts signed with ".....";

WHEREAS the Parties agree that the confidential information exchanged between
the Parties pursuant to such Orders and Contracts need to be stored, handled and
used under strict conditions of confidentiality and that it would be convenient for
both the Parties to enter into omnibus Non-Disclosure Agreement to cover a long
period of engagement and multiple Orders and/or Contracts instead of entering
into individual Agreements on a case by case basis.

AND THEREFORE, THE PARTIES AGREE AS FOLLOWS:

1. DEFINITIONS

1.1. **"Agreement"** means this Omnibus Non-Disclosure Agreement.

1.2. **"Confidential Information"** means information which is not in the public
domain, is proprietary to HAL and/or "....."
and includes, but is not limited to, the following.

- a) Scientific or technical information, know-how, inventions, designs, drawings, diagrams, schematics, processes, procedures, formulae, technologies or methods;
- b) Reports, data, logos, trademarks, specifications, computer software, source codes, object codes, flow charts, databases, and trade secrets;
- c) Commercial information including prices and terms & conditions of Orders/Contracts entered into between the Parties;
- d) Copies of the documents and information described in a), b) and c) above.

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- 1.3. **“Disclosing Party”** abbreviated as **“DP”** shall mean the Party that discloses the Confidential Information.
- 1.4. **“Purpose”** shall be as described in Article 2.1 infra in relation to the outsourced or insourced scope of work.
- 1.5. **“Receiving Party”** abbreviated as **“RP”** shall mean the Party that receives the Confidential Information.

2. PURPOSE

- 2.1. The purpose of this Agreement is to set forth the rights and obligations of the Parties with respect to the use, handling and protection of Confidential Information which is disclosed by and between the Parties for the purpose of execution by "....." of the work outsourced by HAL under various Orders placed and Contracts signed by HAL Divisions, Offices and R&D Centres during the validity of this Agreement (hereinafter referred to as the **“Purpose”**).
- 2.2. For furthering the purpose as above, the Parties may disclose Confidential Information to each other which the Parties shall handle in strict compliance to the provisions of this Agreement.

3. PROCEDURE FOR DISCLOSURE

- 3.1. When disclosed in writing or through electronic means to the RP, Confidential Information will be clearly stamped or marked by the DP as such. Such stamping or marking may include terms such as **“Restricted”**, **“Confidential”**, **“Commercially Confidential”**, **“Proprietary”**, **“Secret”** or **“Top Secret”**.
- 3.2. When disclosed orally, Confidential Information will be identified as such at the time of disclosure by the DP and later reduced to writing or electronic form within 15 calendar days and sent to the RP. However, inadvertent failure of the DP to reduce to writing as above and communicate to the RP shall not discharge the RP from its obligations under this Agreement.
- 3.3. In the event that the DP fails to identify information disclosed to the RP as Confidential Information, the DP may correct such lapse by notifying the RP in writing as soon as possible. The RP shall not be in breach of this Agreement if such information is used or shared with any third party, without regard to the terms of this Agreement, prior to the receipt of such notification from the DP.

4. OBLIGATIONS OF THE RECEIVING PARTY

The RP shall have the following obligations with respect to Confidential Information:

- 4.1. To prevent disclosure of Confidential Information to any third party other

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than its own employees or sub-contractor. Sharing information with its employees or sub-contractor shall also be strictly on a need-to-know basis and solely for the Purpose. Further, a similar Non-Disclosure Agreement is required to be entered with the sub-contractor.

- 4.2. To store and protect the Confidential Information with utmost care.
- 4.3. Not to remove any stampings or markings appearing on Confidential Information.
- 4.4. Not to use Confidential Information for any reason other than the Purpose unless specifically authorised in writing by the DP.

5. EXCEPTIONS TO OBLIGATIONS OF THE RECEIVING PARTY

The obligations with respect to handling of Confidential Information set forth in this Agreement are not applicable to any information which:

- 5.1. prior to its disclosure by the DP was already known to the RP provided that immediately upon the disclosure by the DP, the RP will bring such fact to the attention of the DP in writing; or
- 5.2. is at the time of disclosure in the public domain or which comes into public domain later, where the publication of such information is not through a breach of this Agreement; or
- 5.3. is legally received from a third party, but the RP has no reasonable cause to believe that the third party has obtained such information through a breach of contract between such third party and the DP; or
- 5.4. is independently developed by the RP or a third party, without any breach of contract wherein the DP is a party; or
- 5.5. is approved for release or use by written authorization of the DP; or
- 5.6. is required to be disclosed by law or is mandated to be disclosed by an order by a Court of law or other governmental authority having jurisdiction.

Subject to the following Provisos.

- a) Even if a part of the Confidential Information is exempted under any one of the above exceptions, the RP's obligations as to the remainder of the Confidential Information shall remain in force.
- b) The burden of proof that one or more of the exceptions set forth above will apply to a specific case of disclosure shall rest on the RP.

6. TERM AND TERMINATION

- 6.1. This Agreement shall come into effect from the date of signature by both the Parties and shall remain in force for a minimum period of five years or the date of termination, whichever is earlier. The term of this Agreement can be extended by mutual agreement through a signed amendment in writing.

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6.2. This Agreement can be terminated by either Party giving at least 30 days' notice in writing to the other Party.

6.3. Expiry or termination of this Agreement shall not ipso facto relieve the RP of its obligations under this Agreement which shall be in force for a further period of five years from such date of expiry or termination unless the DP formally discharges the RP from its obligations in writing.

7. RETURN OR DESTRUCTION OF CONFIDENTIAL INFORMATION

7.1. Unless there is an agreement to the contrary, the RP shall return all Confidential Information (and all copies thereof) within thirty (30) days of the completion of the period as per Para 6.3 above. Soft copies stored electronically by the RP shall also be permanently erased by the RP within such time limit.

7.2. If the DP is not satisfied by the actions as above, it shall demand further evidence or actions from the RP within 30 days. If no such demand is raised by the DP in writing within this time limit, the RP shall be automatically discharged from all of its obligations under this Agreement.

8. CONTACT PERSONS

All communications related to this Agreement and exchange of information shall be handled by the following officials.

HINDUSTAN AERONAUTICS LIMITED	M/s. (Name of Company)
Name: Designation: Address: Contact No.: E-mail: Fax No.:	Name: Designation: Address: Contact No.: E-mail: Fax No.:

When this Agreement is to be used or applied by any Division/Office/R&D Centre of HAL other than the one that originally signed it, such other Division/Office/R&D Centre shall nominate by a written notice to

" " another HAL employee as the contact person. Such nomination once made shall in effect supersede and replace the above nomination as far as the Orders placed and/or contracts signed between such other Division/Office/R&D Centre of HAL and " " are concerned without prejudice to any other terms of this Agreement.

As regards the employees identified above, each Party shall have the right and

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power and authorization to re-designate such employees within their organization, who will have authorization to receive and /or transmit Confidential Information exchanged by the Parties under this Agreement. Any such re-designation which is made by any of the Parties shall be effected by rendering written notice of such change to the other Party.

9. REMEDIES

In the event of breach of obligations under this Agreement by the RP, the DP shall be entitled to injunctive relief for rectification of the consequences of the breach as well as for preventing further dissemination of Confidential Information in violation of the terms hereof. Such relief shall be in addition to other legal remedies available to the DP to recoup the losses caused by the breach or to compensate for loss of reputation.

10. DISPUTE RESOLUTION

(Strike out which is not applicable)

If Your company is a Private Company, Proprietorship, LLP, etc.:

All disputes arising out of this Agreement at the first instance shall be resolved by mutual discussions. Disputes which cannot be so resolved shall be settled by arbitration in accordance with the Rules of Domestic Commercial Arbitration of Indian Council of Arbitration, by a single arbitrator appointed in accordance with the said Rules. The seat of arbitration shall be Nashik, Maharashtra India. The proceedings shall be conducted in English Language. The arbitration award shall be final and binding on the Parties. During pendency of the arbitration proceedings, the Parties shall continue to perform their obligations under this Agreement.

If your company is a PSU or a Government entity:

In the event of any dispute relating to this Agreement, Parties agree to schedule a mandatory meeting at a mutually agreed location and attended by the representatives designated by the Parties to resolve the dispute. Any dispute that is not resolved within thirty days from the date of the meeting as above shall be taken up by either Party for resolution through AMRCD as mentioned in DPE OM No. 05/0003/2019-FTS-10937 dated 14-12-2022 and the decision of AMRCD on the said dispute shall be binding on the Parties.

11. AMENDMENT

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12. NOTICE OF BREACH

RP shall notify the DP immediately upon discovery of any unauthorized use or disclosure of Confidential Information by RP or its representatives, or any other

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breach of this Agreement by RP or its representatives, and will cooperate with efforts by the DP to help the DP regain possession of Confidential Information and prevent its further unauthorized use.

13. SEVERABILITY

The invalidity or unenforceability of any provisions of this Agreement shall not affect the validity or enforceability of any other provision of this Agreement and other provisions shall remain in full force and effect.

14. WAIVER

The failure of either Party, at any time, to require performance and/or enforcement of any provision of this Agreement by the other Party shall not be construed as a waiver of its rights under this Agreement, nor shall it affect its rights, at some later date, to enforce its rights under this Agreement.

15. SUCCESSORS

Subject to Article 15 ("Assignment"), this Agreement shall be binding upon and inure to the benefit of the respective successors and permitted assignees of both the Parties.

16. INTELLECTUAL PROPERTY RIGHTS

16.1 No rights, except as provided herein, are granted to the RP by virtue of disclosure of Confidential Information by DP. Such rights shall remain with the DP or concerned third parties, as the case may be.

16.2 No license or conveyance of any rights to either Party under any discoveries, inventions, patents, trade secrets, copyrights, or other form of intellectual property is expressly granted or implied by the disclosure or exchange of Confidential Information between the Parties.

17. CLASSIFIED INFORMATION

Nothing herein shall be deemed to replace or prejudice any governmental security classification referenced on any part of the Confidential Information and the RP undertakes to respect and observe any such classification and to treat the same with such degree of care and security as is required by the relevant governmental authority in the country of the DP. This obligation shall continue for the duration of this Agreement and thereafter until such time as the said authority shall deem appropriate.

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18. GENERAL

As to any matter which is not expressly covered herein, the terms and conditions of the Order/Contract for outsourcing or insourcing to which this Agreement relates shall apply.

IN WITNESS WHEREOF, the Parties by their duly authorized representatives have signed this Agreement in two (2) originals, one for each Party.

HINDUSTAN AERONAUTICS LIMITED	M/s. (Name of Company)
Signature: Name: Title: Date:	Signature: Name: Title: Date:

Witnesses:

1.....

2.....

Witnesses:

1.....

2.....